

GINSBURG, J., dissenting

at 709–710. In prosecutions based on the same conduct, federal and state prosecutors will often charge offenses having different elements, charges that, under *Blockburger*, will not trigger double jeopardy protection. See Poulin, Double Jeopardy Protection From Successive Prosecution: A Proposed Approach, 92 Geo. L. J. 1183, 1244–1245 (2004); Brief for Criminal Defense Experts as *Amici Curiae* 5–11.⁴

Notably, the Federal Government has endeavored to reduce the incidence of “same offense” prosecutions. Under the *Petite* policy adopted by the Department of Justice,⁵ the Department will pursue a federal prosecution “based on substantially the same act(s) or transaction(s)” previously prosecuted in state court only if the first prosecution left a “substantial federal interest . . . demonstrably unvindicated” and a Department senior official authorizes the prosecution. Dept. of Justice, Justice Manual § 9–2.031(A) (rev. July 2009).

At oral argument, the Government estimated that it authorizes only “about a hundred” *Petite* prosecutions per year. Tr. of Oral Arg. 54. But see *id.*, at 65–66 (referring to the “few hundred successive prosecutions that [the Government] bring[s] each year”). Some of these prosecutions will not

⁴The Government implies there is tension between Gamble’s position and *Blockburger v. United States*, 284 U. S. 299 (1932). Brief for United States 18–20. But if courts can ascertain how laws enacted by different Congresses fare under *Blockburger*, they can do the same for laws enacted by Congress and a State, or by two States. But cf. Amar & Marcus, Double Jeopardy Law After Rodney King, 95 Colum. L. Rev. 1, 39 (1995) (“Because different legislatures often do not work from the same linguistic building blocks, they will not use uniform language to describe an offence, even when each is indeed outlawing the same crime with the same elements.”).

⁵Formally the “Dual and Successive Prosecution Policy,” the policy is popularly known by the name of the case in which this Court first took note of it, *Petite v. United States*, 361 U. S. 529 (1960) (*per curiam*). The policy was adopted “in direct response to” *Bartkus* and *Abbate v. United States*, 359 U. S. 187 (1959). *Rinaldi v. United States*, 434 U. S. 22, 28 (1977) (*per curiam*).